

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No:
Date Filed:

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KRIS BAYNES,

Plaintiff,

Plaintiff designates
BRONX COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK, UNDERCOVER POLICE
OFFICER (Shield # 306), DETECTIVE ANDY URENA
(Shield # 7427) and POLICE OFFICERS JOHN DOE
1-10,

The plaintiff resides at:
Bronx County, New York

Defendants.

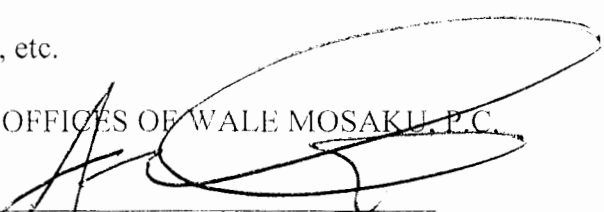
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
May 28, 2016

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.


BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
KRIS BAYNES,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, UNDERCOVER POLICE
OFFICER (Shield # 306), DETECTIVE ANDY URENA
(Shield # 7427) and POLICE OFFICERS JOHN DOE
1-10,

Defendants.

-----X
KRIS BAYNES (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK,
UNDERCOVER POLICE OFFICER (Shield # 306)¹, DETECTIVE ANDY URENA
(Shield # 7427)² and POLICE OFFICERS JOHN DOE 1-10 (collectively referred to as
"the defendants"), upon information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiff under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth
Amendments to the Constitution of the United States; and by Title 42
U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and
statutes of the City and/or State of New York.

¹ Upon information and well founded belief, on the date of the incident, this officer was assigned to the
Bronx Narcotics unit/division ("NARCBX") of the New York City Police Department ("NYPD").

² Upon information and well founded belief, on the date of the incident, this officer was assigned to
NARCBX.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in Bronx County, City and State of New York. Plaintiff is an African American male of full age.
3. At all relevant times, defendants UNDERCOVER POLICE OFFICER (Shield # 306), DETECTIVE ANDY URENA (Shield # 7427) and POLICE OFFICERS JOHN DOE 1-10 of the New York City Police Department (hereinafter "defendant officers"), upon information and belief, were and still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").
4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officer, through its Police Department, namely NYPD, and the actions of the defendant officer complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on June 23, 2015, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the

plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2015PI023061.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the false arrest claim is based.

FACTUAL ALLEGATIONS

9. On or about May 29, 2015, at approximately 03:30 p.m., on a public sidewalk located at the intersection of Morris Avenue and 168th Street in the Bronx County, New York ("subject location") the plaintiff and another young man named Enrique Tejeda³ ("Tejeda"), were unlawfully arrested without probable cause by the defendant officers.
10. That prior to their arrests, the plaintiff and Tejeda, who at the time were close friends, had met at a corner/grocery store located at 1224 Morris Avenue, Bronx, New York.
11. Prior to meeting up, Tejeda had called the plaintiff to let him know that he (Tejeda) was headed to said grocery store.
12. That after meeting up, they walked towards the plaintiff's residence, which was located approximately one block away from said grocery store. At that time the plaintiff intended to go home in order to go get some money.

³ Mr. Tejeda, who at the time of the incident was suffering from end stage cancer, has subsequently passed away.

13. That on the way to the plaintiff's residence, Tejeda, because of his physically weak condition, decided to wait for the plaintiff in front of 1237 College Avenue, Bronx, New York.
14. That as Tejeda was waiting for the plaintiff, an unknown male approached Tejeda, and asked "*do you know Scottie from the corner?*" Tejeda told the unknown male that he did not know that person, and the unknown male then walked away.
15. That as the unknown male was walking away from Tejeda, the plaintiff, who was returning from his residence, having obtained his money, asked Tejeda who the unknown male was, and Tejeda responded that the unknown male had asked him if he knew someone named Scottie.
16. That the plaintiff and Tejeda then proceeded to walk back to the direction of the grocery store located at 1224 Morris Avenue, Bronx, New York.
17. That as the plaintiff and Tejeda were walking towards said store, the unknown male, who was walking a short distance in front of them, kept looking back in their direction.
18. That as the plaintiff and Tejeda arrived at the entrance of the grocery store located at 1224 Morris Avenue, Bronx, New York, they observed the unknown male talking on his cell phone, and then observed said male walk towards 167th Street and enter into a marked NYPD vehicle.
19. At that juncture, approximately 5 male police officers (attired in plain clothes) approached the plaintiff and Tejeda and placed them in handcuffs, following which the plaintiff and Tejeda were taken into an NYPD van.
20. At the time they were arrested the plaintiff and Tejeda protested and asked why they were being arrested, but were not informed of the reason for their arrests.

21. The plaintiff and Tejeda were then driven around for approximately an hour and a half, as other arrestees were placed in the van along the way, following which they were taken to a precinct, and processed, or otherwise fingerprinted and photographed.
22. That subsequently the plaintiff and Tejeda were transported to "central booking", and arrived at that location at approximately 10:00 p.m.
23. That the plaintiff and Tejeda were arraigned in front of a Bronx County Criminal Court Judge at approximately 06:00 p.m. on May 30, 2015, charged with Obstructing Governmental Administration (P.L. 195.05) and released upon their own recognizance.
24. That the Bronx County Criminal Court docket number for the plaintiff is "2015BX025323".
25. The criminal case against the plaintiff is currently pending.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

26. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 25 of this complaint as though fully set forth herein.
27. Following the plaintiff's arrest, the defendant officers searched/strip searched and/or caused the plaintiff and/or his property to be searched/strip searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.
28. As a result of the foregoing, the plaintiff and/or his property was/were subjected to illegal and improper search(es)/strip search(es).
29. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
30. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983 and NEW YORK STATE LAW

31. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 30 of this complaint as though fully set forth herein.
32. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
33. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
34. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR
TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

35. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 34 of this complaint as though fully set forth herein.
36. The defendant officers created false evidence against the plaintiff.
37. The defendant officers forwarded false evidence and false information to the prosecutors in the Bronx County District Attorney's office.
38. That the defendant officers were directly involved in the initiation of criminal proceedings against the plaintiff.

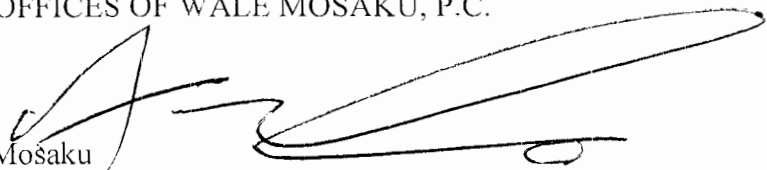
39. That the defendant officers lacked probable cause to initiate criminal proceedings against the plaintiff.
40. That the defendant officer acted with malice in initiating criminal proceedings against the plaintiff.
41. That the defendant officers were directly involved in the continuation of criminal proceedings against the plaintiff.
42. That the defendant officers lacked probable cause in continuing the criminal proceedings against the plaintiff.
43. That the defendant officers acted with malice in continuing the criminal proceedings against the plaintiff.
44. That the defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
45. That the defendant officers misrepresented and falsified evidence to the prosecutors in the Bronx County District Attorney's office.
46. That the defendant officers withheld exculpatory evidence from the prosecutors in the Bronx County District Attorney's office.
47. That the defendant officers did not make a complete statement of facts to the prosecutors in the Bronx County District Attorney's office.
48. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendant officers violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
49. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.
50. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendant officers, individually and severally.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
May 28, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

By:


Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.

KRIS BAYNES,

Plaintiff(s),

-against-

VERIFICATION

THE CITY OF NEW YORK, UNDERCOVER POLICE
OFFICER (Shield # 306), DETECTIVE ANDY URENA
(Shield # 7427) and POLICE OFFICERS JOHN DOE
1-10,

Defendant.

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I, WALE MOSAKU, an attorney at law, duly admitted to practice in the Courts of this
State of New York, affirm under penalties of perjury that:

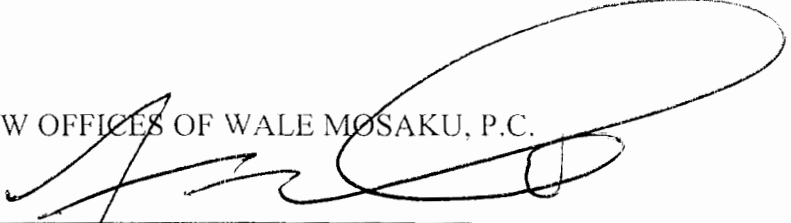
I am the attorney for the plaintiff in the above-entitled matter. That I have read the
foregoing COMPLAINT and know the contents thereof, and upon information and belief
deponent believes the matters alleged therein to be true.

The reason this verification is made by deponent and not by plaintiff is that the plaintiff
herein resides in a County other than the one in which I maintain my office.

The source of deponent's information and grounds of my belief are communications,
papers, reports and investigations contained in the file.

Dated: Brooklyn, New York
May 28, 2016

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

KRIS BAYNES,

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK, UNDERCOVER POLICE
OFFICER (Shield # 306), DETECTIVE ANDY URENA
(Shield # 7427)¹ and POLICE OFFICERS JOHN DOE
1-10,

Defendant(s) .

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated: 200_

Attorneys for Defendant(s)

¹ Upon information and well founded belief, on the date of the incident, this officer was assigned to NARCB BX.